

The Rajasthan Advocates Welfare Fund Rules, 1988

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State of Rajasthan - Act

The Rajasthan Advocates Welfare Fund Rules, 1988

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The Rajasthan Advocates Welfare Fund Rules, 1988

Rule THE-RAJASTHAN-ADVOCATES-WELFARE-FUND-RULES-1988 of 1988

Published on 17 May 1990

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The Rajasthan Advocates Welfare Fund Rules, 1988

Published vide Notification Rajasthan Gazette Part 7, dated 17.5.1990, page 36

In exercise of the powers conferred under section 32 of the Rajasthan Advocates Welfare Fund Act, 1987 (Act No. 15 of 1987) the Bar Council of Rajasthan after previous approval of the State Government make the following rules for the purpose of the Act.

Chapter-I Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Rajasthan Advocates Welfare Fund Rules, 1988.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules unless the context otherwise requires,-

(a)

"Act" means the Rajasthan Advocates Welfare Fund Act, 1987 (Act No. 15 of 1987);

(b)

"Bank" means any Scheduled Bank; and

(c)

"Form" means a form prescribed under these rules.

(2)

Words and expression used, but not defined in these rules, shall have the same meaning as assigned to them in the Rajasthan Advocates Welfare Fund Act, 1987.

Chapter-II Register of the Fund

1. The Committee shall maintain a Fund register of the amount received in the fund under the separate heads provided in section 3 of the Act. This will be in the following form:-

S. No.

Date

R.No.

From whom received

Amount

Notice

Chapter-III Establishment of Trustee Committee

1. The Trustee Committee shall subject to the provisions of the Act and these rules administer the fund and other aspects.

2. The Secretary shall be responsible for the day to day administration of the office of the Committee.

3.

The Committee shall make rules for the recruitment, appointment etc. of the officers and servants of the Trustee Committee. In the mean time, till such rules are framed, the rules framed by the Bar Council in this respect shall be applicable.

4.

The Trustee Committee shall maintain the following registers for the purpose of Accounts:-

(1)

Fund register

(2)

Register of Admission Fees and Annual subscription

(3)

Cash Book

(4)

Stamp sale register and expenses incurred in stationery, printing

(5)

Voucher File

5.

The registers etc. shall be maintained in the Form as directed by the Committee in consultation with the Chartered Accountant appointed as Auditor of the fund.

6.

The Secretary shall maintain the following registers:-

(1)

Members registers in following form:-

S. No.

Date of admission as member

Name and Father's name

Age

Nominees

Address

Date since practising with Enrol No.

Remarks

(2)

Register of Recognised Bar Association in the following form:-

S. No.

Name and address of Association

Date of recognition

Number of Members

File No. of the Association

(3)

Register of Members under suspension:-

S. No.

Name and address and serial number in the
register of members

Date of suspension and
cause in brief

Date of revival

(4)

Register of payments to Members/heirs of members:-

S. No.

Date Name and Address Amount

D/D or Cheque No.

Paid on a/c of

(5)

The other registers and files for day to day use shall be maintained as per requirement under the directions of the Secretary subject to supervision of the Committee.

Chapter-V

(12)

Application for Admission as Member. - Every advocate shall apply for admission as member to the fund within 30 days from the commencement of the Act in the following form.

The delay in applying after the expiry of the time may be condoned for sufficient cause being shown by the applicant.

Application Form

under section 16 of the Advocates Welfare Fund Act, 1987

(Act No. 15/1987)

The Secretary,

Trustee Committee,

Jodhpur.

Sub: Application under section 16

Sir,

I apply to be admitted as member of the fund:-

1. Name

2. Father's name

3. Age

4. Address

5. Enrolment No. and date in the Bar Council

6. Date since practising as

[Section 16(1)]

1. Name and Address of Member
2. Date since practising
3. Name/Names with respective share of the nominee/s
4. Any other particulars.

Signature of the authorised Signatory

(16)

If the application under section 16 after hearing the advocate is rejected, the Committee shall intimate the details of its finding with reasons under the seal and signatures of the Secretary by Regd. post A.D.

(17)

Change or cancellation of nomination. - Any member desiring to cancel or change the nomination made previously, he shall notify under registered post to the Secretary in the following form:

For Change/Cancellation of Nomination

[Section 16(10) of the Act]

1. Name & address of the member with serial number of membership
2. Date of nomination
3. Details of previous nomination

(A)

Name with respective share

(B)

Relationship

4. If cancellation is sought-

(A)

Name of the nominee to be cancelled

(B)

Nominees

5. If fresh nomination is sought:-

(A)

Name with age and share

(B)

Relation with member

(C)

Address of the nominee/s

Date.....

Signature of member

This form shall be attested by the District Judge of the District in whose judgship the member is ordinarily practising or residing.

(18)

Application by member or Association of practice. - Member on cessation of the practice shall submit application for payment of the amount in the following form:

Form of Application by Member under Section 17 for the Payment

1. Name and address of member
2. Date of admission as member
3. Date since practising
4. Duration of practice before admission as member
5. Duration of practice after admission as member
6. Date of commencement of practice:

A. Date of discontinuance

B. Date of renewal

(If there are more periods than one, please state all)

7. If the member joined an employment (since after becoming member, details be given)

8. Total period of discontinuance of practice:

- A. Before admission as member
- B. After admission as member

9. Amount claimed and details in short for it.

A photostat copy duly attested by the member should be affixed with this form.

I hereby declare that the particulars are true to my personal knowledge.

Date.....

(19)

Payment in case of death of the member. - Any nominee, dependent or legal heir, as the case may be, may submit application for the payment of amount in the following form:

1. Name and address of the deceased member
2. Serial No. (Date of admission of the member)
3. Date since practising
(as written in the certificate of membership)
4. Period or periods of discontinuance of practice, if any.
5. If the deceased member joined any service after becoming member, please give details.
6. Date of death of the member
(A death certificate must be enclosed)
7. Details of applicant-
 - A. Name/Names with age and address of each applicant.
 - B. If nominee, specify the share/shares of each nominee.
 - C. If the applicant is not nominee:
 - I. Relation with the deceased.
 - II. Succession certificate must be annexed with the application form.
8. Amount claimed and its details in short.

Date.....

Signature

(20)

Application for payment to be disposed expeditiously. - The Trustee Committee shall dispose off the application under section 17 of the Act very expeditiously and within a month of its receipt in the office of the Committee. If there is any enquiry to be made by the Committee in this respect the same shall be made expeditiously.

Even under all the circumstances the application shall be disposed off within 3 months from the date of receipt in the office of such application:

Provided that this period of one month or 3 months may be extended by a further period of one month with a resolution of the Committee for reasons to be recorded and intimated to the applicant or if more applicants then one to all the applicants.

Copies

Copy of judgment or order to be sent

(21)

Copies. - The Committee shall send a copy of the order or judgment passed or pronounced on any matter under this Act and send a copy of such order or judgment immediately to the applicant or person having interest in the or aggrieved by such order or judgment by Regd. Post (free of cost).

(22)

Other copies to be issued. - The Secretary shall issue copy of any application, any entry of register of members or Register of Bar Association etc. to any person on payment of fees as prescribed in the High Court Rules. The fees shall be paid in cash or in stamps printed by the Committee:

Provided also that the Committee may refuse the issue of copy of any document for reasons to be recorded in writing.

Certified that Page No. 1 to 7 Photo copy of approved Rules conveyed by the Secretary to Government Law and Legal Affairs Department, Government of Rajasthan Jaipur vide his letter No. F. 15(17)S/C/88, dated 27-5-1988.

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